

		Integritox opposes the motion on the grounds that the motion does not comply with the Rules of Court because it fails to specify the page and line number of each revision. Integritox also argues the motion was filed belatedly based on facts which were already known to Cross-Complainant, and the payroll processor's testimony was biased against Integritox. The motion adequately complies with the Rules of Court, Rule 3.1324 because Exhibit 4 to the motion includes a redlined copy showing each revision to the proposed amended Cross-Complaint. Integritox's arguments regarding the merits of the Cross-Complaint may be raised at a later stage of proceedings, but at this stage the Court must liberally allow the amendment so that Cross-Complainant can litigate their claims on the merits against any entity that may be liable arising from the same set of facts. A trial date has not been set and Integritox fails to show undue prejudice resulting from any delay and resulting additional discovery that may be required by the amendment. Cross-Complainant shall file and serve the proposed amended Cross-Complaint within 20 days.
7	21-01185998 <i>Jackson vs. Collectors Universe, Inc.</i>	Motion to Appear Pro Hac Vice The application of attorney Amanda Waide, Esq. to appear pro hac vice as counsel for Defendant Collectors Universe, Inc. (also sued as Professional Sports Authenticator a/k/a PSA) in this matter is hereby CONTINUED to _____. Moving attorney has not met the requirements of California Rules of Court, Rule 9.40. While the supporting declaration of John P. Ward states Attlessey Ward, LLP paid the fees for the Application to the State Bar, proof of that payment was not submitted. (See Ward Decl., ¶ 5.) attorney Amanda Waide, Esq. is to submit proof of payment no later than 5 days before the continued hearing.
8	24-01382178 <i>Kim vs. Kkanbu Restaurant, Inc.</i>	Motion for Leave to File Cross Complaint The Motion for Leave to file a Cross-Complaint brought by Defendants Kkanbu Restaurant, Inc. and Ai Ran Yang is GRANTED, pursuant to Code of Civil Procedure section 428.50, subdivision (c). Defendants shall separately file and serve the proposed Cross-Complaint, attached as Exhibit A to the Declaration of John Heath, within 10-days. A review of the proposed Cross-Complaint confirms the claims therein arise out of the same transaction or occurrence, as the Complaint: Moving Defendants allege Defendant Hyun Mi Kim breached a written agreement by, among other things, "failing to operate Kkanbu Restaurant in a reasonable and responsible manner" and "failing to take responsibility for all matters regarding staffing of employees..." (¶2 of Heath Declaration and Exhibit A thereto, at ¶11.) The Cross-Complaint additionally alleges Defendant Hyun Mi Kim breached a duty "to reasonably operate Kkanbu Restaurant," by failing to follow proper labor practices and failing to pay expenses. (<i>Id.</i> at ¶15-¶16.)

		In addition to the above, the Cross-Complaint alleges Defendant Hyun Mi Kim hired family members, including the Plaintiffs herein, “in an attempt to avoid labor laws” and to allow her to retain a greater amount of proceeds for herself. (¶2 of Heath Declaration and Exhibit A thereto, at ¶21.) Based on the alleged Labor Code violations, moving Defendants allege Defendant Hyun Mi Kim engaged in unfair competition. (<i>Id.</i> at ¶35.) Finally, the Cross-Complaint seeks indemnity for Plaintiffs’ claims. (<i>Id.</i> at ¶27-¶31.) “Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/ All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) Courts “have repeatedly recognized that cross-complaints for comparative equitable indemnity are specifically allowed under section 428.10, subdivision (b) because of their transactional relationship to the complaint.” (<i>Ibid.</i>) “An indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrence or series of occurrences as asserted by the plaintiff.” (<i>Id.</i> at p. 39.) Based on the above, the proposed Cross-Complaint similarly involves the operations of Kkanbu Restaurant, Inc. and the Labor Code violations alleged by Plaintiffs. Consequently, permitting the proposed Cross-Complaint will serve the interests of justice and judicial efficiency. (Code Civ. Proc., § 428.50, subd. (c).)
10	23-01331676 <i>Le vs. Southern California Edison Company</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record <u>MOTION NO. 1:</u> The motion filed by attorney David M. Frieman from Wilshire Law Firm to be relieved as counsel of record for plaintiff Bentley Le, a minor, by and through his Guardian Ad Litem, Isaac Martinez is CONTINUED to _____. Moving attorney has not filed a Proof of Service showing the moving papers were served on Plaintiff or the other parties who have appeared in the case. (Cal. Rules of Ct., Rule 3.1362(d) [“The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.”]) Based on the foregoing, the hearing on the Motion is CONTINUED to _____. Moving attorney is to give notice and to serve the Notice of Motion, Declaration and a Proposed Order with the new hearing date on the client and all other parties who have appeared in the case. Moving attorney is to file a proof of service no later than 5 court days prior to the CONTINUED hearing. Moving attorney to give notice. <u>MOTION NO. 2:</u>